

***HEARING ON MOTION IN RE: BIFURCATE**

FILED BY: NORCAL RENTAL GROUP, LLC

TENTATIVE RULING:

This case is set for jury trial starting July 6. This motion to bifurcate the trial needs to be handled by the trial judge (Judge Campins), who is out at this time. The motion is therefore **continued** to a special-set on Friday, June 26, at 1:30 p.m. in Department 10. That is the earliest available date, with a view to enabling the parties to prepare for the proper scope of trial.

The Court also takes note of the pendency of a DCA writ petition challenging the Court's recent good-faith-settlement ruling. If that petition is not summarily denied, the parties need to consider whether its pendency will have any effect on the viability of the present trial date.

The Court (Judge Treat) also draws attention to the point that his son was, until recently, an associate in the law firm representing American Equipment Company. He has no information that his son worked on this case.

16. 9:00 AM CASE NUMBER: N26-0423

CASE NAME: RE MORGAN BLACK

***HEARING ON MINOR'S COMPROMISE PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF JUDGMENT FOR MINOR OR PERSON W/DISABILITY FILED BY KIMBERLY JOHNSON**

FILED BY:

TENTATIVE RULING:

The proposed minor's compromise is **approved**.

17. 9:00 AM CASE NUMBER: N26-0758

CASE NAME: LEANNE BEAN VS. STEVE GORDON, DIRECTOR OF DMV

HEARING ON PETITION FOR WRIT OF MANDATE

TENTATIVE RULING:

This is a petition for administrative mandate, challenging the suspension of the petitioner's driver's license. The Court can find no record in the file that the petition has been served on DMV. Accordingly, the petition is **dismissed** for lack of timely service. Petitioner has also not filed the administrative record.

18. 9:01 AM CASE NUMBER: C24-02221

CASE NAME: JOHN ROE A.H. VS. WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT, PUBLIC ENTITY

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH SUBPOENA FOR PROD OF BUSINESS RECORDS**

FILED BY: ROE A.H., JOHN

TENTATIVE RULING:

This is a lawsuit over alleged failure of a school district and related defendants to protect students and prevent sexual abuse by a teacher. The teacher in question has been criminally convicted and

given an extremely heavy sentence.

Plaintiff seeks to enforce a third-party subpoena to the California Commission on Teacher Credentialing for its file concerning the teacher in question.

The motion papers show a clear failure by the moving plaintiff to engage in the meet-and-confer process required for discovery motions. Indeed, the initial motion papers included counsel's declaration (though markedly undetailed and generic) that counsel had attempted meet-and-confer unsuccessfully. When challenged on the truthfulness of that statement by the other side, counsel refiled the declaration with the untrue paragraphs deleted. Such conduct risks serious sanctions.

Be that as it may, it is evident that a more substantial and serious meet-and-confer is called for here. For example, at the time this motion was filed a privilege log had been neither prepared nor requested. The Commission reports that it has prepared one since then. This is not really appropriate on either side. If the Commission made privilege objections and intended to rely on them, it should have prepared and served a privilege log at the time of responding, or it risked having waived the privileges. But likewise, if moving counsel was complaining about the lack of a privilege log, surely the first step should have been to get on the phone and request one – especially since, as the Commission reports, such logs had been requested and produced between the same legal offices in parallel separate lawsuits.

Accordingly, counsel for the moving plaintiff and the Commission are directed to engage in a comprehensive and robust meet-and-confer process now. It may proceed initially in written form if that will help to frame the issues, but unless the initial exchange results in agreement, the process must include meaningful live face-to-face discussion (in a conference room, or by Zoom or the like).

The Commission also points out that plaintiff has filed no Separate Statement as required. As the present briefs frame the issues, a Separate Statement would not have been particularly helpful to the Court, since the briefs debate the issues in something of an all-or-nothing fashion rather than by discussing them one request, document category, or privilege claim at a time. But if the meet-and-confer process reveals that there are particular discrete issues presented -- ("you're not entitled to Category X of documents"; "your privilege claim as to documents Y is inappropriate"; "you should not be making redaction Z") -- then the attorneys should jointly prepare a separate statement that frames discrete, separate issues in a discrete, separate format.

This meet-and-confer process is to commence within the next two weeks, and is to continue as a dialog for as long as it takes to either reach agreement, or conclude with certainty that no agreement can be reached, or a mix of agreement on some points and impasse on others.

If it is necessary to take up all or any part of this motion before the Court again, the parties are encouraged to stipulate to a suitable timetable. To have at least a default deadline in place, however, the Court **continues** this motion to August 13, 2026, at 9:00 a.m. Both sides are to file and serve supplemental briefs (and supporting declarations and papers, and a joint Separate Statement if it will be useful) by July 24.

19. 9:01 AM CASE NUMBER: C24-03254
CASE NAME: MAJERRIS WALKER VS. CITY OF PITTSBURG
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER VERIFIED RESPONSES TO FORM
INTERROGATORIES, SET ONE (NOS. 6.4, 6.5, 6.7)
FILED BY: CITY OF PITTSBURG
TENTATIVE RULING:

This case asserts claims arising out of alleged police brutality. Defendant City moves to compel fuller responses to several interrogatories concerning medical treatment and care.

Plaintiff correctly points out that the motion is defective for not including a Separate Statement, which would have been helpful to the Court. However, plaintiff for his part makes no effort to try to resist the motion one interrogatory/response at a time, and he doesn't seriously try to defend the adequacy of the existing responses. He mainly asks for an opportunity to amend the responses.

Well, okay. He can have such an opportunity, because the Court **grants** the motion to compel in its entirety. Plaintiff must provide full and complete responses to the interrogatories in question, with verifications, by July 10, 2026.

No sanctions are requested.

20. 9:00 AM CASE NUMBER: C23-02420
CASE NAME: RUTH LEVINSON VS. CYNTHIA HO
HEARING ON MOTION TO EXPUNGE LIS PENDENS
FILED BY: CYNTHIA HO
TENTATIVE RULING:

This case was dismissed in March. Still remaining in place, however, is a lis pendens. Defendant Ho moves to expunge it. The motion is unopposed, and it is **granted**.

21. 9:00 AM CASE NUMBER: C25-00957
CASE NAME: EBMUD v. CHANDLER
HEARING ON MOTION TO DISMISS AND FOR SANCTIONS
FILED BY: JOHN B. CHANDLER
TENTATIVE RULING:

Defendant John B. Chandler's "Motion to Dismiss Pursuant to CCP § 430.10 and to Hold [Plaintiff] EBMUD in Civil Contempt," deemed a motion for judgment on the pleadings, is **denied**. Defendant's request for civil contempt and attorney fees is likewise **denied**.

Background

EBMUD owns a recorded 1983 easement consisting of a 20-foot-wide strip of land running across private property behind 16 Roberts Court in Contra Costa County. The easement traverses San Ramon Creek, descending one steep hillside, crossing the creek bed, and climbing the hillside on the other